



- ESG Selbstauskunft - Eigener Geschäftsbereich (EGB)

General Information

General Information about the ESG Self-Assessment

Message

Background

To meet the requirements of the Supply Chain Due Diligence Act (LkSG), it is crucial not only to precisely analyze the risks in the supply chain but also those within the own business operations.

The own business operations include all affiliated companies that contribute to the profits of the parent corporation (e.g., subsidiaries, sales companies, etc.).

For this reason, a detailed recording of all activities associated with the production and disposal of all company-specific products and the provision of our respective services must be carried out – regardless of whether these activities take place domestically or on a global scale, or at the main plant or associated companies in the home country or abroad.

Procedure

This request contains specific questions aimed at gaining a comprehensive understanding of the business operations. It includes questions regarding all legal positions (e.g. mercury, fair wages) mentioned in the Supply Chain Due Diligence Act (LkSG). For each legal position, it queries:

- whether there have been explicit violations;
- if not, whether there are processes in place to mitigate risks specific to the legal position;
- whether these processes are effective.

This information is essential to ensure the transparency required by the LkSG. Therefore, we ask you to answer each question with the utmost care and precision.

Support materials

To help you fill in the individual sections, you will find a note field before each section. You can find the following information in the corresponding information fields:

- Definition
- Risk indicators
- Prevention & measures
- Effectiveness control

If you want to open the relevant law to help you fill in the form, you will find the relevant paragraph at the beginning of each legal position. You can also find the legal text [here](#).

General Questions about the Affiliate

Message

Here, general questions about the affiliate are asked. If these have already been filled out centrally for you, please review the information and adjust, if necessary.

Address of Affiliate

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Country of Subsidiary

-

Subsidiary Type

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Comment about Subsidiary Type

-

Affiliation with the Corporate Group

-

Comment Field for Affiliation

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Legal Form

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Number of employees (according to LkSG)" and specifies the inclusion criteria as "= regular full-time and part-time employees, executive staff, temporary workers > 6 months.

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Contact Person

-

Role of Contact Person

-

E-Mail of Contact Person

-

Website of Affiliate (if available)

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In which main business sector or industry is the location active? An example response given is: "Our location is mainly active in the mechanical engineering industry, specialized in the manufacturing of precision parts for automation technology.

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What are the procurement focuses of the location? An example response is: "The procurement focuses of our location mainly include electronic components for our production line of communication devices, specialized plastics for casing manufacturing, and packaging materials for shipping our finished products."

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Please provide us with an overview of the main products or services that are manufactured, distributed, or offered here. An example response is: "At this location, we focus on these product groups: mechanical engineering components such as gears and valves, specialized tools for metal processing, and custom engineering services, including CAD design and prototyping."

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Can you please explain whether this location uses the same supply chain as the parent company, or if it maintains independent supplier relationships? Which model of supply chain management - centralized, decentralized, or hybrid - do you predominantly apply? For example, "This location employs a hybrid supply chain management approach: core components are sourced together with the parent company, while specialized parts involve collaboration with local providers such as ABC KG."

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Please describe the economic significance of this location compared to the overall business. For example, this location contributes 10% to the total revenue and is our main production center for key products.

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Annual revenue volume (previous year)

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Human Rights

Supporting information for completing the section "Questions about Ch

- **Definition: How is an violation defined? When is it a violation?**

Child labor refers to activities that are considered unacceptable because they can impair the development and education of children or have a negative impact on their physical and mental health. Therefore, the employment of persons under the age of 18 generally requires justification. [ILO Convention No. 138](#) defines various age limits and criteria to regulate this.

You can find more information on possible exceptions in the Helpdesk.

Prohibited activities here include working underground, working with dangerous machinery or working in unhealthy, harmful environments.

- **Risk indicators: Which factors increase the risk of violations?**

A lack of age documentation and low wages are warning signs of possible child labor. There is an increased risk, particularly in regions with weak law enforcement and high levels of poverty, which is exacerbated by limited educational opportunities.

- **Prevention & measures: What are examples of processes that mitigate risks?**

Organizations should take stringent measures to verify the age of potential employees and ensure that their working conditions comply with legal requirements for minors. This includes thorough verification of identity documents upon recruitment, as well as monitoring working hours and conditions through digital and manual time recording systems.

You could cite these examples as processes.

- **Effectiveness monitoring: How can you assess whether these processes are effective?**

It is important to regularly review personnel files and carry out spot checks.

This can be used as a background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Human Rights - > Requirements relating to the prohibition of child labour (§ 2 (2) No. (1-2) LkSG).

 Questions about Child Labor (§ 2 Section 2 Clauses 1-2 LkSG)

Does your company violate the requirements regarding the prohibition of child labor according to the LkSG? (e.g., employment of children below the legal age)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to the prohibition of child labor? (e.g., age verification upon hiring, cooperation with local educational institutions)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of processes against child labor.

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Supporting information for completing the section "Questions about FoI

- **Definition: How is a violation defined? When is it a violation?**
Forced labor is involuntary labor that is executed under the menace of any penalty and is prohibited under the UN Covenant on Civil and Political Rights. Identifying this form of labor can be challenging. Hence, external circumstances, as described in the risk indicators, must be taken into account. The LkSG gives examples of non-compliance with labor protection standards, including inadequate safety standards and lack of protective measures. The focus is on whether basic protection standards of ILO Conventions No. 155 and 187 have obviously been disregarded.
- **Risk indicators: What factors increase the risk of violations?**
Specific warning signs of possible forced labor include the withholding of identity documents and restrictions on freedom of movement, problematic recruitment conditions (e.g. recruitment fees and lack of written employment contracts), as well as the lack of protective measures (such as the granting of leave and irregular payment of wages). In addition, a lack of documentation on hazards and countermeasures, as well as reports of abuses (e.g. excessive working hours and intimidation) are indicators of forced labor. Acts such as imprisonment, the use of violence and wage restraint are excluded in all cases and must not be threatened as punishment, as are debt bondage and abusive working conditions.
- **Prevention & measures: What are examples of processes that mitigate the risks?**
Ensure that all employment contracts are documented in writing and available in languages that are understandable to workers. This promotes clear communication and understanding of the terms of the contract.
You could use this example as a process.
- **Effectiveness monitoring: How can you assess whether these processes are effective?**
To ensure compliance with labor laws and identify potential grievances at an early stage, regular spot checks of employment contracts should be carried out. In addition, site inspections, if necessary by trustworthy third parties, and the screening of various sources of information on possible grievances, such as press articles and websites of non-governmental organizations, are essential. These can be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Human Rights -
> Requirements relating to the prohibition of forced labour (§ 2 (2) No. (3) LkSG).

Questions about Forced Labor (§ 2 Section 2 Clause 3 LkSG)

Does your company violate the requirements regarding the prohibition of forced labor according to the LkSG? (e.g., use of labor without their consent)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to the prohibition of forced labor? (e.g., verification of employment contracts for voluntariness)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of the processes against forced labor.

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Supporting information for completing the section "Questions about Sla

- **Definition: How is a violation defined? When is it a violation?**
Slavery and servitude are defined by the Geneva Convention on Slavery and the Supplementary Convention on the Abolition of Slavery, while the UN Covenant on Civil and Political Rights stipulates their prohibition. The distinction between forced labor and slavery is often blurred, so both forms of involuntary labor should be considered together. Modern forms of slavery include slavery, debt bondage, domination in the workplace and extreme economic and sexual exploitation. Personal bondage and control are at the forefront of slavery and servitude.
- **Risk indicators: What factors increase the risk of violations?**
The risk indicators for forced labor can also indicate slavery and slavery-like practices. It is important to also consider less obvious aspects, such as personal control over people, domination and oppression, and sexual exploitation. The [Global Slavery Index](#) provides a worldwide overview of modern slavery.
- **Prevention & measures: What are examples of processes that mitigate the risks?**
In order to gain insights into working conditions and recognize potential abuses at an early stage, anonymous employee interviews should be conducted regularly. In addition, it is important to implement measures such as appropriate health and safety guidelines, the right to collective bargaining and fair wage structures to ensure health and safety and labor rights.
You could use these examples as processes.
- **Effectiveness monitoring: How can you assess whether these processes are effective?**
Independent audits and regular employee surveys should be carried out here. These make it possible to uncover possible grievances and ensure that the working conditions meet the standards.
These can be used as a background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Human Rights - > Requirements relating to the prohibition of slavery (§ 2 (2) No. (4) LkSG).

Questions about Slavery (§ 2 Section 2 Clause 4 LkSG)

Does your company violate the requirements regarding the prohibition of slavery according to the LkSG? (e.g., working conditions that can be classified as modern slavery such as debt bondage, human trafficking, exploitation)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to the prohibition of slavery? (e.g., audits for human rights compliance, employee training to identify slavery)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of processes against slavery.

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Supporting information for completing the section "Questions about FoI

- **Definition: How is a violation defined? When is it a violation?**
The LkSG requires that all legitimate rights are taken into account and the consent of the affected holders of these rights is obtained before land, forests and waters are acquired or developed. A mere review on the basis of registrations and formal evidence is often not sufficient, as land registers and cadasters are often incomplete and traditional rights of the local population to state land may be older than the nation state. Companies must therefore ensure if other individuals or groups in addition to the state have legitimate ownership, possession or utilization rights to these areas and if these are respected.
- **Risk indicators: What factors increase the risk of violations?**
Priority should be given to checking whether the company has legal title to the land used and has paid appropriate compensation. At the same time, it should be analyzed whether there is a high level of corruption in the public administration in the country in question, which could call into question the legality of the title acquisition. In addition, reports of protests against land use by the company or difficulties in accessing information can provide further indications.
- **Prevention & measures: What are examples of processes that mitigate the risks?**
To ensure effective land use rights, a document register can be kept in the company. This register should not only document the land use rights themselves, but also monitor and control compliance with the resulting obligations such as interest payments, maintenance or dismantling after use.
You could cite these examples as processes.
- **Effectiveness control: How can you assess whether these processes are effective?**
The lack of public reports, administrative decisions or court judgements on possible breaches of obligations can be used to check effectiveness.
These can be cited as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Human Rights -
> Requirements relating to the prohibition of unlawful eviction (§ 2 (3) No. (10) LkSG).

 Questions about Forced Evictions (§ 2 Section 2 Clause 10 LkSG).

Does your company violate the requirements regarding the prohibition of illegal forced eviction as defined by the LkSG? (e.g., unlawful expropriation of land without compensation)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to the prohibition of illegal forced eviction? (e.g., strict adherence to property laws, transparent land use procedures)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of processes against evictions.

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Labor Rights

☐ Supporting information for completing the section "Questions about Sa

- **Definition: How is a violation defined? When is it a violation?**

Companies are required to implement strict safety measures. This regulation requires the protection of all employees from workplace hazards and accidents and emphasizes the importance of a safe working environment at every stage of production and service.

A violation hence is committed if safety standards are clearly inadequate (with regard to the workplace, workstation or work equipment), if protective measures are not suitable, if the right to rest is not observed or if training and instruction are inadequate. The question here is whether the protection standards of ILO Convention No. 155 and 187 have been disregarded.

Inadequate local regulations on occupational health and safety are not sufficient to justify disregard.

- **Risk indicators: Which factors increase the risk of violations?**

Important indicators for possible violations are a lack of protective measures for fair working conditions, a lack of documentation on hazards and countermeasures or reports of abuses.

- **Prevention & measures: What are examples of processes that mitigate risks?**

These include, for example, safety protocols and training as well as checking equipment and the working environment for compliance with safety standards. These examples can be cited as processes.

- **Effectiveness control: How can you assess whether these processes are effective?**

For example, safety audits and an incident reporting and response system can serve as an effectiveness check. In addition, checking whether applied standards comply with national law and ensuring that these standards are applied in the organization.

These examples can be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Labor Rights -
> Requirements relating to occupational health and safety (§ 2 (2) No. (5) LkSG)

Questions about Safety (§ 2 Section 2 Clause 5 LkSG)

Does your company violate the requirements regarding occupational safety at the workplace as defined by the LkSG? (e.g., inadequate safety measures at work)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to occupational safety at the place of employment? (e.g., regular safety training, provision of protective equipment)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of the safety processes.

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Supporting information regarding the questionnaire "Questions about F

- **Definition: How is a violation defined? When is it a violation?**
Companies are obliged to guarantee the right to freedom of association (including forming and joining labor unions) and collective bargaining. A violation exists if this is restricted by the company.
- **Risk indicators: Which factors increase the risk of violations?**
An indicator may be, for example, that the company is located in a country where the formation of labor unions is generally difficult, or if there are public reports of repression or violence against labor unions.
- **Prevention & measures: What are examples of processes that mitigate the risks?**
These include policy implementation (implement clear policies that support and protect the rights to freedom of association and collective bargaining) or training and education programs (conduct training programs for management and workers to inform them about the rights to form labor unions and participate in collective bargaining)
You can use these examples as processes.
- **Effectiveness monitoring: How can you assess whether these processes are effective?**
Regular evaluations or a complaint mechanism can be set up to monitor effectiveness.
These examples can be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Labor Rights - > Requirements relating to freedom of association (§ 2 (2) No. (6) LkSG)

 Questions about Freedom of Association (§ 2 Section 2 Clause 6 LkSG)

Does your company violate the requirements regarding freedom of association as defined by the LkSG? (e.g., obstruction of union activities)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to freedom of association? (e.g., policies that support the formation of and joining unions)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the processes to ensure freedom of association.

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Supporting information for completing the section "Questions about Equi

- **Definition: How is a violation defined? When is it a violation?**

Companies are obliged to create an inclusive workplace where nobody is discriminated against.

A violation occurs when unequal treatment or discrimination of employees takes place that is not necessary for the requirements of employment, i.e. for reasons unrelated to work (e.g. on the basis of origin or gender). The unequal treatment can affect all decisions in the employment relationship (e.g. salary or career development).

- **Risk indicators: Which factors increase the risk of violations?**

Indicators can be, for example, the lack of compliance guidelines or training to raise awareness. Additional indicators can be media reports or information in reporting systems.

- **Prevention & measures: What are examples of processes that mitigate the risks?**

These include, for example, the integration of a clear and explicit commitment to non-discrimination in company guidelines.

You can cite this example as a process.

- **Effectiveness monitoring: How can you assess whether these processes are effective?**

Interviews with randomly selected employees, regular renewal and confirmation of compliance rules, and review of reporting can be used as effectiveness checks.

These examples can be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Labor Rights - > Requirements relating to the prohibition of unequal treatment (§ 2 (2) No. (7) LkSG)

 Questions about Equality (§ 2 Section 2 Clause 7 LkSG)**Message**

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Does your company violate the requirements regarding the prohibition of unequal treatment in employment as defined by the LkSG? (e.g., discrimination based on gender or origin)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to the prohibition of discrimination in employment? (e.g., equality policies, anti-discrimination training)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of processes against inequality.

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Supporting information for completing the section "Questions about Fai

- **Definition: How is a violation defined? When is it a violation?**
This aspect of the LkSG supports the enforcement of fair labor practices and guarantees that wages are at least equal to the legal minimum standards or industry benchmarks sufficient to ensure a decent living. It emphasizes the need for companies to ensure fair and timely payments to all employees. A violation occurs if the wage violates the minimum wage regulations or if the wage is not sufficient to guarantee a decent standard of living locally.
- **Risk indicators: What factors increase the risk of violations?**
Important indicators are the occurrence of child labor, general income and poverty reports, as well as individual case reports.
- **Prevention & measures: What are examples of processes that mitigate risks?**
These include the implementation of a wage guideline that guarantees fair remuneration above the legal minimum, as well as transparent calculation and payment of wages.
You can use this example as a process.
- **Effectiveness control: How can you assess whether these processes are effective?**
Regular salary audits, for example, in which internal salary reviews are carried out or feedback mechanisms for employees, can be used to monitor effectiveness.
These examples can be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Labor Rights - > Requirements relating to the prohibition of withholding a fair wage (§ 2 (2) No. (8) LkSG)

Questions about Fair Wages (§ 2 Section 2 Clause 8 LkSG)

Does your company violate the requirements regarding the prohibition of withholding a fair wage as defined by the LkSG? (e.g., payment below the legal minimum wage)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to the prohibition of withholding a fair wage? (e.g., compliance with minimum wage regulations)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of processes that ensure fair wages.

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Supporting information for completing the section "Questions about Se

- **Definition: How is a violation defined? When is it a violation?**
It must be ensured that the hiring and deployment of security guards complies with human rights standards and ethical principles. The LkSG emphasizes the need for companies to carefully select and manage security services.
A violation can manifest itself, for example, in torture or inhumane treatment, the endangerment and threat to life and limb, but also in the impairment of freedom of association or union.
- **Risk indicators: Which factors increase the risk of violations?**
Important indicators are media or individual reports, as well as indications of similar incidents in the respective economic sector, in the company's neighborhood or armed conflicts in the region.
- **Prevention & measures: What are examples of processes that mitigate the risks?**
These include, for example, a thorough background check prior to commissioning, strict contractual obligations and deployment guidelines, training and instruction, as well as regular monitoring.
You can cite these examples as processes.
- **Effectiveness monitoring: How can you assess whether these processes are effective?**
Effectiveness can be checked by carrying out audits or introducing a system for reporting incidents.
These examples can be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Labor Rights - > Requirements relating to the use (in terms of instruction and control) of private or public security forces (§ 2(2) No. (11) LkSG)

Questions about Security Guards (§ 2 Section 2 Clause 11 LkSG)

Does your company violate the requirements regarding the prohibition of engaging or using private or public security forces to protect the business project? (e.g., inappropriate use of force by contracted security services)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes that mitigate risks related to the usage of security forces? (e.g., strict selection criteria for security service providers, human rights protection training)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company.

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the processes regarding the usage of security forces

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Environmental rights

Supporting information for completing the section "Questions about the

- **Definition: How is a violation defined? When is it a violation?**
To protect natural resources, the LkSG prohibits harmful soil, air and water pollution, as well as noise emissions and excessive water consumption. A violation is committed if a person's health is harmed or their access to drinking water, food or sanitary facilities is impaired.
- **Risk indicators: What factors increase the risk of violations?**
Reports of public grievances, but also a high level of corruption in the public administration (potentially jeopardizing permits granted).
- **Prevention & measures: What are examples of processes that mitigate the risks?**
Through an environmental management system that systematically records environmental risks from the respective business operations and defines and monitors countermeasures.
You can cite this example as a process.
- **Effectiveness control: How can it be assessed whether these processes are effective?**
Effectiveness mechanisms should be integrated into the environmental management system. This also includes the regular review of the functioning of the management system and checking whether there are any further reports of environmental grievances.
These examples can be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Environmental Rights -> Requirements relating to soil changes, water and air pollution, harmful noise emissions or excessive water consumption (§ 2 (2) No. (9) LkSG)

 Questions about Soil, Water and Air Pollution (§ 2 Section 2 Clause 9 LkS

Does your company violate the requirements regarding soil changes, water and air pollution, harmful noise emissions, or excessive water consumption as defined by the LkSG? (e.g., soil contamination, overuse of water sources)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks related to soil changes, water and air pollution, harmful noise emissions, or excessive water consumption? (e.g., implementation of water-saving measures, air filtration systems, noise reduction programs)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of the processes against air, water and soil pollution as well as noise emissions.

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Supporting information for completing the section "Questions about me"

- **Definition: How is a violation defined? When is it a violation?**
Companies should control and minimize the use of mercury in their processes. A violation exists if your company manufactures products containing mercury, uses mercury or mercury compounds in manufacturing processes or disposes of mercury waste. The standards for handling mercury are regulated in the Minamata Convention.
- **Risk indicators: What factors increase the risk of violations?**
You should therefore check whether you use, manufacture or purchase products that are specifically listed in Annex II of the EU Regulation or No. 2017/852 or Annex A of the Minamata Convention. If gold is processed, the ban on the use of mercury in small-scale gold mining and processing must be observed.
- **Prevention & measures: What are examples of processes that minimize the risks?**
These primarily include the use of mercury-free technologies. If, in exceptional cases, your company does work with mercury, preventive measures such as training, special protective equipment and proper waste treatment are required. You could use these examples as processes.
- **Effectiveness control: How can you assess whether these processes are effective?**
For example, on-site inspections by independent third parties can be used to check effectiveness.
These can be cited as background for categorizing effectiveness.

Further detailed information can be found on our Helpdesk page under Environmental Rights -> Requirements relating to the use of mercury (§ 2 (3) No. (1-3) LkSG).

Questions about Mercury (§ 2 Section 3 Clause 1-3 LkSG)

Message

Info: The questions regarding the effectiveness of the processes are only relevant if there are processes in place. Otherwise, please use the designated text field to explain why certain processes do not exist (e.g., not relevant because we do not work with mercury).

Does your company violate the requirements regarding the use of mercury as defined by the LkSG? (e.g., use of mercury in production processes)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks associated with handling mercury? (e.g., use of mercury-free technologies, regular employee training on handling mercury)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of processes against mercury.

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Supporting information for completing the section "Questions about the

- **Definition: How is a violation defined? When is it a violation?**

The LkSG regulates the handling of certain chemicals, in particular persistent organic pollutants (POPs). Persistent organic pollutants (POPs) are chemical substances that accumulate strongly in the environment, are difficult to break down and pose serious risks to human and animal health. Strict monitoring and control of their release is required. This includes the monitoring and control of their production, use and disposal to ensure compliance with international agreements such as the Stockholm Convention, which aims to eliminate or restrict the production and use of POPs.

The substances listed in the Stockholm Convention (in particular POPs) are banned and restricted almost worldwide. A violation is committed if the handling of such substances violates the Convention.

- **Risk indicators: Which factors increase the risk of violations?**

The risks addressed by the POPs Convention occur primarily in the chemical industry, pulp production, agriculture and the use of thermal processes. The lack of a procedure for recording chemicals can also be an important risk indicator.

- **Prevention & measures: What are examples of processes that minimize the risks?**

These include, for example, the use of a substance management system. In this system, substances and associated risks should be systematically recorded, evaluated and tracked so that their production or use can be avoided or limited with countermeasures.

You could use this example as a process.

- **Effectiveness control: How can it be assessed whether these processes are effective?**

Effectiveness control can take place through effectiveness mechanisms integrated into the substance management system, as well as through the regular review of the functioning of the management system.

These examples could be used as background for categorizing effectiveness.

Further detailed information can be found on our [Helpdesk page](#) under Environmental Rights -> Requirements relating to the handling of chemicals (§ 2 (3) No. (4-5) LkSG)

Questions about the Handling of Chemicals (§ 2 Section 3 Clauses 4-5 I

Does your company violate the requirements regarding the handling of chemicals concerning persistent organic pollutants as defined by the LkSG? (e.g., improper storage of persistent organic pollutants)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks associated with handling chemicals? (e.g., strict storage and handling guidelines for chemicals, regular safety checks)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of processes regarding the handling of chemicals.

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Supporting information for completing the section "Questions about Wa

- **Definition: How is a violation defined? When is it a violation?**

The Basel Convention regulates, among other things, the permissibility and control of exports of hazardous (and other) waste. In this context, it also addresses the environmentally adequate management of hazardous and other wastes, in particular by restricting and controlling transboundary movements as a whole.

Which wastes are listed as hazardous or assimilated is determined on the one hand by Annex I of the Basel Convention.

A violation hence is committed if the handling of hazardous waste is in breach of the Basel Convention.

- **Risk indicators: What factors increase the risk of violations?**

An important indicator for violations is if your company operates in a country that is not a member of the Basel Convention. Another indicator may be the lack of a waste management system.

- **Prevention & measures: What are examples of processes that mitigate the risks?**

These include, for example, a waste management system (i.e. the implementation of a system that includes the identification, classification and risk-based assessment of all types of waste), control mechanisms (to ensure that all waste is treated in accordance with legal requirements and only transported across borders with the necessary permits), or waste prevention and minimization (by developing and implementing strategies to reduce the quantity and hazardousness of waste directly at source).

You could cite these examples as processes.

- **Effectiveness control: How can it be assessed whether these processes are effective?**

Effectiveness control can take place, for example, through independent audits (using independent third parties to check and evaluate the effectiveness of the implemented waste management processes), or through spot checks (carrying out regular spot checks during the collection and transport process of waste).

These can be used as a background for categorizing effectiveness.

Further detailed information can be found on our Helpdesk page under Environmental Rights -> Requirements relating to the handling of hazardous waste (§ 2(3) No. (6-8) LkSG)

Questions about Waste Handling (§ 2 Section 3 Clauses 6-8 LkSG)

Does your company violate the requirements regarding the handling of hazardous waste as defined by the LkSG? (e.g., non-compliant disposal of hazardous waste products)

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If yes, please describe the main causes for these violations. If no, please continue with the process questions.

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Does your company have internal processes to mitigate risks associated with handling hazardous waste? (e.g., proper disposal procedures, training on waste separation and disposal)

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If yes, please describe these processes. If no, describe the reasons for the exclusion of the processes in your company

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How do you rate the effectiveness of these processes?

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Please describe the background for your assessment of the effectiveness of waste processes.

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